

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 12
Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 04/15/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 4	24CV453851	Jason Stean v. Associated Plumbing	MOTION TO COMPEL Plaintiff propounded Request for Production, Set One, to Defendant on May 14, 2025. Several requests for, and grants of extensions to serve responses, have been exchanged between counsel. Request for Production of Documents Nos 7 and 52 are the subject of the current motion. Notice is proper. The Court has received no opposition from Defense. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff’s motion is granted. Defendant to provide code compliant responses to Requests for Production of Documents Nos 7 and 52 within 20 days of the date this hearing. Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 5	25CV460776	Bigler et. al v. Lee et al	MOTION TO COMPEL Please control click or scroll down to Line 5
LINE 6	25CV464001	Shari Yuan v. Starbucks Corporation	MOTION: CHANGE OF VENUE Please control click or scroll down to Line 6
LINE 7	25CV468850	Timothy McCarthy v. Ford Motor Company	PETITION TO COMPEL ARBITRATION Off Calendar; Moving Defendant Serramonte Ford dismissed from this action without prejudice on 04-03-26
LINE 8	24CV431895	Thi Nguyen v. Viet Hoia Le	MOTION TO ENFORCE SETTLEMENT Please control click or scroll down to Line 8

The Court addresses the current Defendant's Motion to Compel scheduled on April 15, 2026, and the upcoming Plaintiff's Motion to Compel scheduled on May 13, 2026.

1. Untimely opposition

Defendant filed a Motion to Compel on September 16, 2025 to be heard on April 15, 2026. Plaintiff's opposition filed on April 7, 2026 is untimely under CCP § 1005(b). Even applying the extended service period for electronic service, the opposition was due no later than April 6, 2026.

Pursuant to CRC 3.1300(d), the Court has discretion to consider late-filed papers. The Court declines to consider Plaintiff's untimely opposition in connection with the April 15, 2026 hearing, absent a showing of good cause and lack of prejudice.

2. Coordination of related discovery motions

The Court notes that a second motion to compel between the same parties is presently set for hearing on May 13, 2026, and that both motions appear to involve overlapping discovery disputes. In the interest of judicial economy and to avoid duplicative briefing and inconsistent rulings, the Court finds good cause to continue the April 15, 2026 Motion to Compel to May 13, 2026.

3. Order to meet and confer

Counsel are ordered to meet and confer in good faith regarding all outstanding discovery issues that are the subject of both motions. The meet and confer process shall be substantive and shall include identification and narrowing of all requests at issue, all responses and objections in dispute, and any issues resolved or mooted. The parties shall complete this process no later than April 25, 2026, and shall exchange a written summary of remaining disputes.

4. Consolidated motion schedule

To allow adequate time for meaningful meet and confer efforts while preserving sufficient time for judicial review, both motions will be heard on **May 13, 2026**. The Court sets the following consolidated briefing schedule for all remaining discovery disputes in both motions:

- Updated motions shall be filed and served no later than April 28, 2026.
- Oppositions shall be filed and served no later than May 7, 2026.
- Reply briefings shall be filed and served no later than May 11, 2026 at noon.
- The papers shall address **only remaining issues and shall supersede prior briefings.**

**COUNSEL ARE ORDERED TO APPEAR ON APRIL 15, 2026 AT 9:00 A.M. – IN PERSON
PREFERRED.**

Calendar Line 6
Shari Yuan v Starbucks Corporation
25CV464001

Defendant Starbucks Corporation's motion to change venue to Kern County Superior Court

The Court has carefully considered Plaintiff's reliance on CCP § 395.5 in filing the Complaint in Santa Clara County. That statute permits suit against a corporation in the county where the corporation has its principal place of business, where the contract is made or performed, or where the obligation or liability arises. Plaintiff argues that because Defendant is a foreign corporation that has not designated a principal place of business within California, it may be sued in any county in the state.

The Court does not interpret § 395.5 so broadly. The absence of a designated California principal place of business does not render venue proper in every county. Rather, the statute still requires a nexus between the action and the county selected—most commonly where the liability arises. Here, the alleged injury occurred in Kern County, and thus liability arose there.

Plaintiff's showing that Defendant operates numerous retail locations in Santa Clara County does not establish that Santa Clara County is Defendant's principal place of business within the meaning of § 395.5, nor does it otherwise supply a statutory basis for venue in this county. Nor does the relative convenience of corporate witnesses, including access to airports or transportation infrastructure, provide an independent basis to establish venue where it is otherwise improper.

The Court is mindful of Plaintiff's residence in Santa Clara County, her ongoing medical care, and the presence of supportive witnesses here. Those are legitimate and practical concerns. However, in personal injury actions, a plaintiff's residence does not determine venue under CCP § 395, and the Court is constrained to apply the governing statutory framework.

Plaintiff's request for a continuance to pursue additional discovery is not persuasive. Venue is determined based on the facts at the time the action is commenced, and the record reflects that verified discovery responses have already been exchanged. Plaintiff has not identified specific additional facts reasonably likely to establish proper venue in Santa Clara County. Under these circumstances, a continuance would not alter the analysis.

Because Santa Clara County is not a proper venue under CCP §§395 or 395.5, transfer is mandatory. The Court therefore does not reach the parties' arguments regarding convenience under CCP §397.

Defendant Starbucks Corporation's motion to change venue to Kern County Superior Court is GRANTED. Plaintiff's alternative request for a continuance is DENIED.

Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

Calendar Line 8

Thi Diem Hong v Viet Hoai Le
24CV431895

Defendant's Motion to Enforce Settlement Pursuant to Code of Civil Procedure pursuant to section 664.6.

Code of Civil Procedure section 664.6 permits entry of judgment pursuant to a settlement only where the parties have stipulated in a writing signed by the parties or orally before the court to all material terms of the agreement. The statute is strictly construed, and the court's authority is limited to enforcing the actual agreement reached by the parties; it may not impose or supply terms that were not agreed upon. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 585; *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.)

The requirement of direct party participation in the settlement process serves an important purpose. "The litigants' direct participation tends to ensure that the settlement is the result of their mature reflection and deliberate assent. This protects the parties against hasty and improvident settlement agreements by impressing upon them the seriousness and finality of the decision to settle, and minimizes the possibility of conflicting interpretations of the settlement." (*Levy, supra*, 10 Cal.4th at p. 585.)

A court may enforce a settlement under section 664.6 only where there is mutual assent to all material terms, and not where essential terms remain open or subject to future negotiation. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810–811; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360–1361.)

Here, although the parties executed a written settlement agreement, the record reflects that key implementing documents—including the promissory note, deed of trust, and escrow/title instructions—were not finalized and remained subject to ongoing negotiation. These provisions concern the method and security of payment and the mechanics of performance, and therefore constitute material terms of the settlement rather than mere ministerial details.

Defendant contends that the promissory note and deed of trust were fully negotiated, agreed upon, and approved by both parties, and that Plaintiff's refusal to execute those documents constitutes a failure of performance rather than a lack of agreement. However, the record reflects a material factual dispute as to whether those instruments were in fact finalized or whether their terms remained subject to further negotiation. Even crediting Defendant's position, section 664.6 requires a clear showing of mutual assent to all material terms. Where the evidence demonstrates uncertainty or dispute regarding the existence or completeness of such terms, enforcement is not appropriate.

Because the record demonstrates that the parties had not reached final agreement on all material terms necessary to effectuate the settlement, there is no enforceable agreement within the meaning of section 664.6. The court cannot supply or construct missing essential terms under the guise of enforcement. (*Weddington, supra*, 60 Cal.App.4th at pp. 810–811.)

On this record, the Court cannot conclude that the parties reached a final and complete agreement as to the material terms governing payment and security. Accordingly, enforcement under section 664.6 is not warranted.

Defendant's Motion to Enforce Settlement Pursuant to Code of Civil Procedure pursuant to section 664.6 is DENIED.

Plaintiff to prepare the final order, accompanied by the necessary form EFS-020, within 10 days of the date of the hearing.

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